

Court No. - 37

Case :- WRIT - C No. - 51222 of 2013

Petitioner :- Suresh Singh

Respondent :- Managing Director, Kanpur Electricity Supply Co.Ltd.& 2 Ors.

Counsel for Petitioner :- Devendra Dahma

Counsel for Respondent :- Dr. S.K. Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Heard learned counsel for the petitioner and Sri S.K. Yadav, learned counsel for the respondents.

By means of this writ petition, petitioner has prayed for quashing the order dated 04.05.2013 passed by Executive Engineer, respondent no. 2 finalizing the assessment against the petitioner. On the basis of an inspection dated 04.03.2013, the provisional assessment notice dated 16.03.2013 was issued to the petitioner. Petitioner submitted a detailed objection dated 16.04.2013 before respondent no. 2, Annexure-6 to the writ petition. The Executive Engineer has finalized the assessment by order dated 04.05.2013, which is filed as Annexure-8 to the writ petition.

Learned counsel for the petitioner submits that although the order impugned acknowledges the receipt of the objection of the petitioner but there is no consideration of any objection in the order.

We have perused the order dated 04.05.2013. The order has been passed in a printed proforma by only filling the figures. There is no application of mind by the Executive Engineer before passing the order of assessment. When an objection is filed to the provisional assessment, it is obligatory on the part of the Executive Engineer to apply his mind to the objection and consider the same before finalizing the assessment.

U.P. Electricity Supply Code, 2005 provides a mechanism for finalizing the assessment against the consumer. Executive Engineer has not applied his mind and passed a mechanical order without considering the objection which cannot be sustained and the same is hereby set aside.

We direct the Executive Engineer to consider the objection of the petitioner and thereafter take decision regarding final assessment against the petitioner within a period of four weeks from the date a copy of this order is produced before him.

The writ petition is disposed of.

Order Date :- 19.9.2013

Sandeep